

26STCV04635 26STCV04635

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Case Number: 26STCV04635 Hearing Date: September 11, 2026 Dept: 406

MARIA ESPARZA,

Plaintiff,

v.

ALTAMED HEALTH SERVICES CORPORATION,

Defendant.

Case No.: 26STCV04635

Hearing Date: September 11, 2026

[TENTATIVE]

order RE:

defendant's motion to compel arbitration

BACKGROUND

On February 11, 2026, Plaintiff

Maria Esparza filed this action against Defendant Altamed Health Services Corporation, asserting claims for harassment, discrimination, retaliation, and failure to prevent.

On June 4, 2026, Defendant filed the

instant motion to compel arbitration. Plaintiff filed an opposition on August

28, 2026. Defendant filed a reply on September 3, 2026.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists....” (Code Civ. Proc, § 1281.2.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

“As to the existence of an agreement, [the moving party bears] the ultimate burden of proof, but the court [is] obliged to resolve the dispute using a three-step burden-shifting process.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

a. Defendant’s Initial Burden

“The moving party ‘can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.’” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation.’” (Iyere, supra, 87 Cal.App.5th at p. 755.)

Here, Defendant relies on the declaration of its HR director, Elizabeth Martinez, who avers that “Plaintiff electronically signed the binding Arbitration Agreement on June 3, 2021.” (Martinez Decl. ¶ 5, Ex. B.) The agreement provides: “I further agree and acknowledge that the Company and I will utilize binding arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my employment, including but not limited to the termination of my employment and my compensation.” (Ibid.) An electronic signature bearing

Plaintiff's name appears at the bottom of the agreement underneath an acknowledgment that reads: "MY SIGNATURE BELOW ATTESTS TO THE FACT THAT I HAVE READ, UNDERSTAND, AND AGREE TO BE LEGALLY BOUND TO ALL OF THE ABOVE TERMS." (Ibid.)

This evidence satisfies Defendant's initial burden of proving the existence of an arbitration agreement.

b. Plaintiff's Burden to Raise a Factual Dispute

"If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature." (Iyere, *supra*, 87 Cal.App.5th at p. 755.)

Here, Plaintiff states: "I deny ever signing an arbitration agreement during my employment with Defendant, including the one at issue. I also deny ever electronically signing any documents at any time during my employment with Defendant." (Esparza Decl. ¶ 4.) Plaintiff further denies ever being presented with an arbitration agreement. (Id., ¶¶ 4-5.) This raises a factual dispute regarding Plaintiff's signature, shifting the burden back to Defendant.

Defendant argues that Plaintiff's declaration is insufficient to raise a factual dispute because Plaintiff focuses on the period "during" her employment, whereas the purported agreement was signed as part of pre-employment onboarding. However, Plaintiff expressly denies signing "an arbitration agreement during my employment with Defendant, including the one at issue." (Esparza Decl. ¶ 4.) Thus, Plaintiff has denied signing the specific arbitration agreement at issue. Defendant's semantic argument elevates form over substance and does not detract from the factual dispute raised by Plaintiff's declaration.

Plaintiff also denies “ever typing my name, or selecting the checkmark on this agreement.” (Esparza Decl. ¶ 5.) This is another specific denial regarding Plaintiff’s signature on the purported agreement. Defendant contends this is not a sufficient denial because Plaintiff “does not state that [she] did not check the checkbox, which is the equivalent to a handwritten signature.” (Reply 3:25-26.) There is no substantive difference between “selecting the checkmark” and “check the checkbox.” Plaintiff clearly conveyed that she did not electronically sign the agreement, and minor semantic differences do not detract from this denial.

To meet her burden, Plaintiff is not required to definitively prove that the agreement is invalid; she need only “submit sufficient evidence to create a factual dispute.” (Iyere, *supra*, 87 Cal.App.5th at p. 755.) Taken together, the denials in Plaintiff’s declaration are sufficient to raise a factual dispute over the purported signature on the agreement. Therefore, the burden shifts to Defendant to prove the agreement by a preponderance of the evidence.

c. Defendant’s Ultimate Burden

An electronic signature has the same legal effect as a handwritten signature. (Civ. Code, § 1633.7(a).) An “electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (*Id.*, § 1633.9(a).) “[T]he burden of authenticating an electronic signature is not great.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 844.)

In the face of a plaintiff’s denial, the mere fact that an agreement has an electronic signature on it bearing the plaintiff’s name, with a date and time stamp, is insufficient to show that the signature was “the act of” the plaintiff. (Ruiz, *supra*, 232 Cal.App.4th at p. 844.) Rather, a moving defendant needs to present evidence to “show that only [the plaintiff] could have placed the electronic signature on the arbitration agreement.” (Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 53, *emphasis in original*.) “For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence

detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (Ibid.)

Here, Defendant makes no attempt at the requisite showing. Ms. Martinez’s declaration, while sufficient to meet Defendant’s initial burden, has been rebutted by Plaintiff’s specific denials. Ms. Martinez simply concludes that “Plaintiff electronically signed the binding Arbitration Agreement on June 3, 2021” without showing how she knows that. (See Martinez Decl. ¶ 5; see also Garcia, supra, 102 Cal.App.5th at p. 53 [finding no arbitration agreement where defendant “summarily concluded that Garcia electronically signed and acknowledged the agreement before exiting out of Taleo, with the only purported evidence being her name on the agreement”].) The fact that employees are generally presented with an arbitration agreement during onboarding is not evidence that a specific individual signed a specific document. (See Martinez Decl. ¶¶ 7-8.) Ultimately, there is insufficient evidence that the particular electronic signature at issue here was “the act of” Plaintiff.

In sum, Defendant has failed to prove an agreement to arbitrate by a preponderance of the evidence.

CONCLUSION

Defendant’s motion to compel arbitration is DENIED.